

Executive Engineer, Electricity Urban Distribution Division v. Himanshu Mishra & Another

Allahabad High Court · Division Bench · 6 November 2017 · Writ - C No. 22710 of 2015 · **Writ petition dismissed as misconceived; District Consumer Forum had concurrent jurisdiction and its order is appealable**

HEADNOTE

The Consumer Grievance Redressal Forum constituted under the U.P. Electricity Supply Code, 2005, read with the CGRF Regulations, is one available remedy for a consumer's electricity grievance; it does not oust the District Consumer Forum under the Consumer Protection Act, 1986. A consumer may elect either forum. There is no provision barring that election. Where the consumer has chosen the District Consumer Forum and that Forum has passed an order, a distribution licensee's Article 226 writ seeking to quash the order on the plea that the Forum lacked jurisdiction because the Supply Code is a complete code is misconceived: the no-jurisdiction plea has no foundation, and the Forum's order is appealable. The Executive Engineer's writ challenging the Gorakhpur District Consumer Forum's 10 September 2014 order, in a complaint against disconnection for non-payment of bills, was dismissed.

FACTUAL SUMMARY

The Executive Engineer of the Electricity Urban Distribution Division-III, Gorakhpur, filed this writ to quash the 10 September 2014 order of the District Consumer Forum, Gorakhpur in complaint case no. 131 of 2011. That complaint had been brought against a 30 December 2009 disconnection of respondent No. 1 Himanshu Mishra's supply for non-payment of bills raised by the Division. The licensee contended that the Forum had no jurisdiction because the U.P. Electricity Supply Code, 2005 was a complete code for grievance redressal and the consumer ought to have approached the Consumer Grievance Redressal Forum.

On 22 April 2015 a Division Bench issued notice and stayed the Forum order. After several listings at which the stay was extended, the writ was heard and dismissed on 6 November 2017.

REUSABLE CONSTRUCTIONS

1. The Consumer Grievance Redressal Forum under the U.P. Electricity Supply Code, 2005 is an additional, not exclusive, remedy; it does not oust the District Consumer Forum under the Consumer Protection Act, 1986. ¶ 3
2. A consumer may elect between the Supply Code CGRF and the District Consumer Forum; there is no provision barring that election of one of the available remedies. ¶ 3
3. A licensee cannot maintain an Article 226 writ against a District Consumer Forum order on the plea that the Forum lacked jurisdiction because the Supply Code is a complete code, when that plea has no foundation and the Forum's order is appealable. ¶ 3-5

HOLDING-UNITS

INTERPLAY · UP-2005::7.10

CGRF under the Supply Code does not oust the District Consumer Forum; consumer has a right of election

QUESTION

Does the Consumer Grievance Redressal Forum under the U.P. Electricity Supply Code, 2005 oust the jurisdiction of the District Consumer Forum under the Consumer Protection Act, 1986, so that a consumer must raise an electricity grievance only before the CGRF?

HOLDING

No. Consumers could have raised the grievance before the CGRF constituted under the Supply Code read with the CGRF Regulations, but the remedy before the District Consumer Forum is also a remedy under the

Consumer Protection Act, 1986. There is no provision that the consumer cannot elect one of the available remedies. The consumer having chosen the District Consumer Forum, that Forum had jurisdiction to pass the order under challenge. ¶ 3-4

QUALIFIER

The complaint as recited was against disconnection for non-payment of bills, not an assessment under ss.126/135 of the Electricity Act, 2003.

FLAG The Court did not cite a numbered Code clause or a section of the Consumer Protection Act, 1986. Keyed to Clause 7.10 (CGRF and Ombudsman). Paragraph numbers are those of the 6.11.2017 disposal; the source PDF also contains listing and stay-extension orders of 22.4.2015, 7.8.2015, 8.10.2015, 26.10.2015, 23.11.2015, 4.1.2016 and 9.3.2016.

INTERPLAY · UP-2005::7.10

licensee's Article 226 writ against an appealable District Consumer Forum order is not the remedy where the no-jurisdiction plea fails

QUESTION

May a distribution licensee invoke Article 226 to quash a District Consumer Forum order, instead of the statutory appeal, on the ground that the Forum lacked jurisdiction because the Supply Code is a complete code?

HOLDING

No. Once the District Consumer Forum has passed an order and that order is appealable, the licensee should avail the appeal rather than Article 226. The plea that the Forum had no jurisdiction, and therefore there was no occasion to avail the alternative remedy of appeal, has no foundation. The writ was dismissed as thoroughly misconceived and ill-advised. ¶ 3-5

FLAG Same 6.11.2017 disposal. No authority was cited. The 22.4.2015 stay of the Forum order falls with the dismissal.

PRINCIPLE TAGS

cgrf-does-not-oust-district-consumer-forum On a licensee's writ to quash a Gorakhpur District Consumer Forum order in a disconnection-for-arrears complaint, the Court held that the Supply Code CGRF is one available remedy and does not bar the consumer's election of the District Consumer Forum under the Consumer Protection Act, 1986. ¶ 3-4

cgrf-alternative-statutory-remedy The CGRF under the Supply Code read with the CGRF Regulations was treated as an additional statutory forum, not an exclusive one that displaced the District Consumer Forum. ¶ 3

writ-dismissed-statutory-appeal-left-open Because the District Consumer Forum order was appealable and the no-jurisdiction plea had no foundation, the licensee's Article 226 petition was dismissed as misconceived rather than entertained on the merits of the Forum order. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISTRICT CONSUMER FORUM, GORAKHPUR ORDER DATED 10.9.2014 IN COMPLAINT CASE NO. 131 OF 2011, AND OF THE 30.12.2009 DISCONNECTION AND THE UNDERLYING BILLS
The writ was dismissed on jurisdiction and maintainability; the Forum order was not reviewed on the merits. ¶ 3-5